

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE: Mental Health Counselor License of JOHN CHURCH License No. 001065 Respondent	CASE NO. 21-0243 SETTLEMENT AGREEMENT AND FINAL ORDER
---	---

Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4), and 645 Iowa Administrative Code (IAC) chapter 12, the Iowa Board of Behavioral Science (“Board”) and John Church (“Respondent”) enter into the following Settlement Agreement and Final Order (“Order”) to settle a contested case currently pending before the Board. The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on February 16, 2023.
2. The Board has jurisdiction over Respondent and the subject matter of this proceeding.
3. Respondent acknowledges that these factual circumstances, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order. The following factual circumstances are incorporated into this Order:
 - a. Respondent holds mental health counselor license number 001065, which is currently active through September 30, 2024.
 - b. Respondent provided therapy to a client for approximately 13 months.
 - c. Respondent terminated therapy with the client via text message that also provided the client with information that he would be referring the client to another therapist.
 - d. The client claims Respondent shared the client’s diagnosis with others without written consent from the client.
 - e. Respondent allowed the client to stay overnight one night at his family residence as a respite for the client in an emergency situation. Respondent did not provide therapy to the client during the respite.
 - f. Respondent allowed another client to stay overnight at his family residence for several months as a refuge to the client for the client’s mental health. Respondent did not provide therapy to the client in his home at any time during the client’s stay.

- g. Respondent was unable to produce any clinical records for the client because his computer crashed and technical assistance was unsuccessful in retrieving any data from the computer.

4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to a hearing before the Board on the charges, but Respondent waives the right to a hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

5. Respondent acknowledges that he has the right to be represented by counsel on this matter.

6. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

8. This Order is disciplinary action and shall be reported as discipline.

9. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

10. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

11. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

12. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

13. Respondent agrees to **VOLUNTARILY SURRENDER** his mental health counselor license to resolve this matter. This voluntary surrender is considered discipline and, when accepted by the Board, has the same force and effect as an order of revocation under 645 IAC 12.1(5).

14. Respondent agrees not to use any words or titles which imply or represent that he is a licensed mental health counselor in the State of Iowa, or to otherwise hold himself out to the public as a licensed mental health counselor in the State of Iowa, or to engage in the practice of mental health counseling for which a license is required in the State of Iowa, unless his license is reinstated.

15. Respondent shall immediately return his mental health counselor license to the Board.

16. Any request for reinstatement shall be governed by 645 IAC 11.31 and 31.17. Respondent must wait a minimum of one (1) year from this Order prior to seeking reinstatement. Respondent's license shall not be reinstated except upon a showing by Respondent that the basis for the surrender of his license no longer exists, and that it is in the public interest for the license to be reinstated. Respondent understands that if an initial request for reinstatement is denied, the Board may establish requirements that must be met prior to considering a subsequent request. If Respondent's license is reinstated, Respondent understands it may be placed on probation, or otherwise restricted, and that the length of probation and the conditions of probation, or the terms of any restriction, will be established through further order of the Board in conjunction with an order granting reinstatement of Respondent's license.

17. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

Date

12/1/2023


JOHN CHURCH
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Behavioral Science on December 4, 2023.

 Tony Aiden

Tony Aiden, Board Executive
Iowa Board of Behavioral Science

Copy to:

Marlene S. Garvis, JD, MSN
4597 Woodridge Rd
Minnetonka, MN 55345
ATTORNEY FOR RESPONDENT